

Why do some academic publishers think they should charge extra for more liberal licenses (CC BY)?

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In recent days, there has been a [surge of opposition](#) from some members of the scientific community over the new journal being launched by the American Association for the Advancement of Science. Aside from the high base-level charge from this publisher, which seems outside of the norm, one of the most controversial elements (also seen with some other publishers) is that the AAAS wants to charge more for a more liberal license. Why is this the case?

To understand this, a little background on copyright and open licensing is necessary. Open licensing is a structure that sits on top of copyright under which authors use their rights to confer additional benefits to others, such as re-use, modification, translation and other derivative uses. The traditionally theorised model of academic labour is one wherein academics are paid a salary to write research articles and do not need to sell their work. They are, therefore, extremely well placed, the argument goes, to give away their work. (There are some problematic assumptions here that are linked to the increasing precarity of many academics on short-term contracts.) Copyright provides both economic and moral rights to authors. Under this theorised model, academic authors clearly do not need or want the economic protections; they do not need to sell their research. Instead, what they usually want is acknowledgement: a moral right.

Academic publishers, on the other hand, are very different. Under a subscription/sale model, they explicitly utilise the economic protections of copyright to ensure that they can compensate for the labour that they invest into a publication (and profits in some cases etc. -- I won't re-hash that argument). They take the time-limited monopoly and ensure that only they can sell the unique commodity item in that period. Publisher revenue comes from a variety of sources, predominantly subscriptions, but also reprint requests and so on.

Gold open access, however, implies a series of economic inversions in which publisher labour is to be remunerated from the supply side. In many instances, although by no means all, this takes the form of an article or book processing charge, in which the author, their institution or funder, remunerates the publisher for the labour, in exchange for making the work available freely to all. This again rests upon a set of assumptions about the motivations and economic situations of academic authors.

In a gold OA environment, a publisher must decide how much monetary return they want on an article or book. They must then estimate, based upon their publishing model, where they will recoup these funds. If a publisher believes that they have no other route to monetisation of an article or book, then the APC/BPC must cover all the costs (and profit) that the publisher wishes to make. If a publisher's model, however, includes freemium, print subsidy, digital-format alternative subsidy, institutional subsidy, reprint, commercial re-use or any other revenue stream, then the APC/BPC could be offset against the expected returns elsewhere on a risk-appraisal basis.

The argument then goes, in such cases, that if alternative revenue streams are denied (because publishers don't have a copyright monopoly under the more liberal CC BY licenses), then the APC/BPC must be higher. This argument, therefore, only applies to publishers who expect to make money elsewhere; if a publisher doesn't undertake such other revenue-generating activities and it charges different APC/BPC rates for more open licenses, then it is just cashing in. The logic unfolds because, it is argued, if licenses are completely open, then competitors to the publisher can re-package their work and compete against that publisher for the additional revenue (that was offset against the APC/BPC). This too is a slightly strange argument: is there substantial evidence that, at the moment, other commercial entities are swooping upon CC BY material and denying publishers revenue?

This post is not meant to condone such pricing policies from publishers; it is instead meant to explain why they come about. It is important that this type of pricing logic is understood if researchers are to become more sensitive to price as a determining factor in their choice of an APC- or BPC-driven gold-OA venue. At the moment, too frequently, APCs and BPCs look as though they are arbitrarily plucked out of thin air (or are simply calculated by dividing an entities current rate of profit by the number of OA articles it will publish). If publishers do want to offer price differentiation on their lists on bases such as these, they *must* do a better job of transparently explaining what the costs are, where they go and how decisions such as licensing affect their individual, specific ability to make the returns that they believe are necessary. Appraising the appropriateness of those returns is a very different matter that will continue to generate heat. If publishers are not better at demonstrating how their costs translate to value, however, cash-strapped researchers will balk.